Showing contexts for: **title dispute** in Parkash Singh And Others vs Joint Development Commissioner on 8 November, 2013

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A Consolidation officer is, therefore, empowered, during consolidation proceedings to decide all such **disputes** and pass all such orders that fall to the jurisdiction of a revenue officer, as may be necessary for preparing revenue records and may even partition the land amongst co-sharers. Section 16-A of the Consolidation Act, which confers power upon a Consolidation Officer to partition land holdings provides that provisions of Chapter (IX) of the Punjab Land Revenue Act, 1887 (the chapter pertaining to partition of land), except Section 117, i.e., the power of a revenue officer to decide a question of **title** or refer parties to a civil Court, shall apply to consolidation proceedings. The question whether Consolidation authorities are empowered by Section 16-A of the Consolidation Act to decide a **disputed** question of **title** came up for consideration before a Full Bench of this Court in Ajit Singh v. Smt. Subaghan and others, AIR 1970, Punjab and Haryana, 93. After considering the provisions of Sections 16-A, and 22 of the Consolidation Act and Section 117 of the 1887 Act, it was held that Consolidation authorities are not empowered to decide a **disputed** question of **title**.

Thus, an appraisal of provision of the 1961 Act makes it absolutely clear that "Jumla Mushtarka Malkan" land is not included in "Shamilat Deh" and, therefore, provisions of the 1961 Act including provisions of Section 11 that empower the Collector to decide a **dispute** regarding **title** shall not apply if the land is "Jumla Mushtarka Malkan".

A reference would necessarily have to be made, to Section 2(g)(6), introduced by the State of Haryana, declaring that land reserved for common purposes, during consolidation, i.e., Jumla Mushtarka Malkan" shall be included in "Shamilat Deh". The State of Punjab has not enacted any such provision. We, therefore, have no hesitation in holding that land described as "Jumla Mushtarka Malkan" is not "Shamilat Deh", vests in the Gram Panchayat for management and control alone and any **dispute** with respect to any right, **title** or interest in this land, cannot be decided under any adjudicatory provisions of the 1961 Act, much less by the Collector, exercising power under Section 11 of the 1961 Act.

The question that now remains is to identify the forum, a person who raises a plea that the land is not "Jumla Mushtarka Malkan" or that it was created by applying an illegal pro rata cut or that the land was not reserved for common purposes during consolidation, would be required to approach. After due consideration of the entire matter, we find no provision in the 1961 Act, the 1976 Act or the Consolidation Act that provides a forum to a person who raises such a plea and, therefore, in the absence of any fora for deciding such a **dispute** a person may have to approach a Civil Court but Section 44 of the Consolidation Act prohibits a Civil Court from entertaining any matter which the State Government or any officers are empowered by the Consolidation Act to determine or dispose of. Section 44, however, cannot be read to prohibit Civil Courts from deciding a question of **title** relating to "Jumla Mushtarka Malkan" as what is prohibited by Section 44 is matters that fall to the jurisdiction of State Government or to any officer duly empowered by the Consolidation Act to decide. The Consolidation Act does not confer power whether on the State Government or the officers empowered thereunder to decide a question of **title**. The jurisdiction of a Civil Court to entertain a **dispute** regarding "Jumla Mushtarka Malkan" is, therefore, not barred by Section 44 of the Consolidation Act. The only forum available to a person, who raises a **dispute** regarding **title** in"Jumla Mushtarka

Malkan" is the principal Court of civil jurisdiction having jurisdiction in the matter, as provided by Section 9 of the Code of Civil Procedure,i.e., a Civil Court.

> Section 11, confers exclusive jurisdiction, upon a Collector, duly appointed by State Government, to decide whether or any right, **title** or interest in "Shamilat Deh" vests or does not vest in a Gram Panchayat,. Section 11, was introduced, in the 1961 Act, by way of an amendment in 1976. Before this amendment, the power to decide such a **dispute** vested in a Civil Court. The power of a Civil Courts to entertain such a **dispute** was statutorily barred, after introduction of Section 13 in the 1961 Act. The only authority competent to decide a **dispute** regarding **title**, between a Gram Panchayat and a private individual or vice versa, relating to any right, **title** or interest in "Shamilat Deh" is the Collector, exercising power under Section 11 of the 1961 Act. Section 12 of the 1961 Act accords finality to orders passed by the Collector and the Appellate Authority. Section 13-B of the 1961 Act enacts a non-obstante clause that postulates that all judgments, decrees and orders passed by any authority shall be ignored if they are not in accordance with provisions of the 1961 Act.